

Abdul Kalaam v. State of U.P.

Allahabad High Court · Division Bench · 28 January 2016 · WRIT - C No. 1914 of 2016 · **Writ disposed; consumer relegated to CGRF under clause 7.10**

HEADNOTE

A consumer disputing a licensee's revised electricity bill and the adjustment of past deposits cannot have those facts tried in a writ petition. Clause 7.10 of the U.P. Electricity Supply Code, 2005 channels such grievances to the Consumer Grievance Redressal Forum and Ombudsman, which the licensee is obliged to maintain under the UPERC Regulations, 2003.

FACTUAL SUMMARY

Abdul Kalaam had earlier filed Writ Petition No. 48300 of 2015 alleging that amounts he had deposited were not adjusted against his electricity dues. On 26 August 2015 the High Court allowed a representation; the licensee then modified the bill on his application of 10 September 2015 and demanded Rs. 15,065. He returned in this writ still asserting that past payments remained unadjusted. The licensee's counsel said dues had been assessed and any grievance lay before the Consumer Grievance Redressal Forum and Ombudsman.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman route for billing grievances

HOLDING

The U.P. Electricity Supply Code, 2005 is a self-contained code. Where a consumer is aggrieved by the licensee's action on a revised bill, including alleged non-adjustment of past deposits, the High Court will not enter disputed questions of fact and will leave the consumer to the Consumer Grievance Redressal Forum and Ombudsman under clause 7.10. The licensee is obliged to set up that Forum in accordance with the UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and the Forum was functional. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Revised bill after a court-directed representation, with a live dispute over adjustment of past deposits, sent to CGRF and Ombudsman; writ disposed without a merits determination. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PAST DEPOSITS HAD BEEN ADJUSTED AND WHETHER THE REVISED DEMAND OF RS. 15,065 WAS CORRECT

Left to the Consumer Grievance Redressal Forum and Ombudsman on the records; the Court declined to examine disputed facts.

¶ 1